



POLICE DEPARTMENT

September 8, 2025

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In the Matter of the Charges and Specifications :
- against - :
Police Officer Kyron DeLaRosa :
Tax Registry No. 960431 :
Highway Unit 1 :
-----X

Case No.

C-031422

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Ashley Baxter, Esq.
Jordan Diamond (*Law Student Practitioner*)
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Stuart London, Esq.
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To:
HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Kyron DeLaRosa, on or about July 9, 2022, at approximately 1400 hours, while assigned to the 47 Precinct and on duty, in the vicinity of [REDACTED], wrongfully used force, in that PO DeLaRosa used a non-lethal restraining device on [REDACTED] by tasing him in prong mode for third and fourth cycle without police necessity. *(As amended)*

P.G. 221-01, Page 3, Prohibition 2

FORCE GUIDELINES

P.G. 221-08

USE OF CONDUCTED
ELECTRICAL
WEAPONS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on July 23, 2025.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. The CCRB introduced into evidence the hearsay statement that [REDACTED] (“Complainant”)¹ made to their investigators along with video footage and other documents. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner’s review. Having evaluated all the evidence in this matter, I find Respondent Not Guilty.

ANALYSIS

On July 9, 2022, Respondent and other officers were called to [REDACTED] to assist agents and officers from the Federal Bureau of Investigations (“FBI”) and the New Rochelle Police Department who were attempting to apprehend the perpetrators of an earlier armed carjacking. They had pursued the suspects into the apartment and were requesting back up

¹ Complainant was sixteen years old at the time of the incident; his mother, [REDACTED] made the CCRB complaint on his behalf.

from the NYPD. Complainant and several other people were inside. The facts in this matter are largely undisputed.

Respondent arrived at the residence at approximately 1335 hours. He remained outside for two minutes, then went in through the open front door. Complainant was inside struggling with three law enforcement officers. Specifically, Complainant was resisting their attempts to place him into handcuffs by pulling his arms out of their grip, bending at the waist, and twisting away from them. Two dogs were in the room barking and coming close to the group. Respondent approached Complainant with his Conducted Electrical Weapon (hereinafter “Taser”) in drive stun mode.² He pressed it to Complainant’s back and pulled the trigger. Complainant screamed and fell away from Respondent and the Taser lost contact.

Complainant quickly got back to his feet and continued to fight with the other officers. The group moved into the hallway towards the front door. Complainant threw himself toward the ground, pulling the other three officers with him. Several of the officers were ordering Complainant to put his hands behind his back. Respondent attached a cartridge to the front of his Taser and after several seconds deployed the metal probes. When the probes hit Complainant in the stomach and chest Respondent administered a five second current of electricity. Respondent pulled the trigger a second time as the other officers pulled Complainant to his feet and moved him closer to the front door. Complainant continued to actively resist, and the larger dog remained in close proximity. The officers were eventually able to handcuff Complainant immediately outside of the front door.

It is undisputed that Respondent pulled the trigger of the Taser, when it was in prong mode, a total of four times. Complainant was taken to the hospital to have the Taser prongs

² Drive stun mode, also known as “dry stun” mode, occurs when the front electrodes of the CEW are pressed directly against a person's body or clothing to deliver a shock. (See P.G. 221-08, page 2)

removed from his body. The CCRB alleges that the use of the third and fourth cycles constituted a wrongful use of force because officers had control of Complainant when they were administered. Respondent argues that Complainant was still actively resisting arrest at the time the third and fourth cycles were deployed. In addition, he contends that during the second cycle, one of the wires connecting the prong was dislodged rendering the third and fourth trigger pulls ineffective. (Tr. 21-36, 42, 48, 50-51; *see* CCRB Ex. 2, *Complainant's CCRB interview*, at 11-17, 18-19, 37-38; CCRB Ex. 3, *Respondent's CEW data sheet*; CCRB Ex. 5, *Respondent's body-worn camera footage*, at 02:25-03:45; CCRB Ex. 6, *Respondent's body-worn camera footage at .50 speed*)

Complainant did not appear before the tribunal to give his version of events. Instead, CCRB entered into evidence the audio recording and transcript of his November 30, 2022, telephone interview with CCRB investigators. It is well-settled that hearsay evidence is admissible in administrative proceedings and may form the sole basis for a finding of fact. However, the hearsay must be evaluated to determine whether it is sufficiently reliable. In the absence of live testimony from Complainant, I carefully considered his prior statement in conjunction with the other evidence presented at trial.

During the interview, Complainant recalled that at approximately 1400 hours on the date in question, he was playing a video game in his apartment with his cousin's friend when he heard banging at the front door. Complainant remembered that he went to identify the source of the noise and discovered police officers at the door. He stated that instead of opening the door, he went to his bedroom to call his mother. Complainant described seeing through a window that two or three police officers were in his backyard with their weapons drawn; they then directed him to "freeze." (CCRB Ex. 2 at 11-17, 22)

Complainant told the investigator that the officers kicked down the front door and “four or five” came into the apartment. Complainant recounted that he was standing at the end of the hallway when they came in and he observed that some of the officers had their weapons out. According to Complainant, an officer ordered him to exit the residence while others began searching the various rooms. Complainant contended that he tried to communicate with the officers, but they would not listen to him. He alleged that he attempted to leave the apartment, and an officer grabbed him right above his elbows and informed him that he was under arrest. Complainant described the officer forcing him to the floor while telling him to place his hands behind his back. (CCRB Ex. 2 at 21-23, 30, 33, 46)

Complainant admitted that he attempted to break free from that officer’s grasp and other officers arrived and tried to pin him to the floor. Once on the floor, complainant described feeling a knee on the middle of his back and hearing someone behind him say, “Stop! Cooperate or he’s going to tase [you].” Complainant recalled that he was trying to get the officers off him as they pulled his arms. He explained that he was then tased on his back. After the initial tasing, Complainant alleged that he stopped struggling and the officers picked him up onto his knees. In spite of this, he remembered the officers urging him to stop resisting, threatening further tasing if he did not comply. Complainant acknowledged that he continued to pull his arms away because the officers were hurting him. He characterized his movements as attempts to alleviate the pain, not resist arrest. (CCRB Ex. 2 at 18-19, 28-39)

Complainant recalled seeing Respondent aiming the Taser toward his chest and that he moved to the side, but Respondent tased him before he got out of the way. Complainant described feeling the electric current “for a good few seconds.” He recalled that the other officers picked him up and walked him to the front of his house where they handcuffed him.

Complainant informed the CCRB investigators that “DeLaRosa” was the officer who tased him. When asked how he knew that, Complainant replied that Respondent identified himself to his mother when she asked which officer deployed the Taser. (CCRB Ex. 2 at 37-38, 40-42, 44)

In addition to Complainant’s statements, the CCRB presented footage from Respondent’s body-worn camera that captured the incident. The following is a summary of CCRB’s Exhibit 5:

- 02:36-02:42: Complainant is struggling with three officers; two dogs are barking and jumping at the group. Respondent drive stuns Complainant in the shoulder through his clothing.
- 03:03-03:09: The officers and Complainant stumble into a narrow hallway, with one dog still barking and jumping. Respondent shines the warning light from the Taser on Complainant and deploys the prongs toward his torso. Complainant screams. A steady five second electrical noise is heard.
- 03:09-03:14: There is a quick pause in the sound from the Taser, and it begins again. The three officers, Complainant and the dog move out of the hallway. Complainant is still actively resisting. Respondent follows still holding the Taser from which wires can be seen stretching towards Complainant. The noise coming from the Taser is slower, less steady, and quieter.
- 03:14-03:24: Complainant and the officers approach the apartment’s open front door. Complainant’s arms are behind his back. He continues to pull them away and remains uncuffed. The slow-paced noise is again heard from the Taser.
- 03:30-03:40: The group is in the doorway. Complainant is continuing to attempt to move away from the officer. The slow-paced noise emanates from the Taser. After it ends, one of the officers yells “he’s cuffed.” Complainant stops pulling away after being handcuffed.

Respondent testified that on the date of the incident, he responded to a “10-13” call of officers in need of assistance at an address in the Bronx. He recalled arriving and learning that the FBI and the New Rochelle Police Department were in “hot pursuit” of two suspects from a gunpoint carjacking who they had followed to the apartment. Respondent described hearing a

“commotion” and looking into the open door of the residence. He recounted seeing officers trying to place Complainant, who was “actively resisting” into custody. Respondent entered the home to assist the officers. (Tr. 22-23)

Respondent acknowledged that he drive-stunned Complainant on his upper back and estimated that Complainant broke free from the contact after two seconds. Respondent then attached a cartridge and deployed his Taser in prong mode with both prongs hitting Complainant’s torso. (Tr. 23-26)

Respondent explained that once the Taser trigger is pulled, the electrical current “cycle” lasts for five seconds, unless terminated prematurely by the operator. He stated that officers receive annual training in the use of CEWs, and that he has previously deployed Tasers. Based on those experiences, Respondent detailed that a properly deployed Taser, resulting in a complete electrical circuit, produces a “fluid” static sound. He explained that the sound changes to a “skipping” tone if the circuit is broken or the Taser is malfunctioning. In addition, Respondent asserted that if a Taser fails, officers can “try it again to see if it works.” (Tr. 27-28, 32-33, 38,41, 55)

Respondent testified that although the initial prong mode deployment resulted in a successful five second cycle, Complainant continued to actively resist. In an attempt to subdue him, Respondent pulled the trigger for a second cycle and, after a couple of seconds, noticed the skipping sound indicative of malfunction. (Tr. 24, 26, 33)

Respondent testified that he pulled the trigger in prong mode for a third and then a fourth cycle. He maintained that he did so because Complainant was still trying to get away and that malfunctions can occasionally resolve themselves, making the Taser effective again. Respondent

believed the last two cycles had not resulted in a completed electrical circuit, because he continued to hear the “skipping” sound emanating from the Taser. (Tr. 24-28, 44-45)

Respondent stated that, in keeping with NYPD protocol, after Complainant was in handcuffs he went to remove the Taser wires from the prongs, which were still embedded in Complainant’s skin.³ It was then that Respondent realized that the one of the wires had disconnected from the corresponding prong. Respondent stated that this explained the “skipping” sound that began during the second prong mode cycle and confirmed his suspicion that the third and fourth cycles had been ineffective. (Tr. 25-26)

Based on his training and experience, Respondent estimated that Complainant received an electric shock from the Taser for a total of approximately seven seconds, two in drive stun mode and five in prong mode. He acknowledged that officers are expected to give verbal warnings when possible, and that he did not do so. Respondent testified that the Patrol Guide sets forth that, in lieu of a verbal warning, the physical presence of the Taser, coupled with the light that appears when it is activated, may serve as a visual warning. (Tr. 40-41, 51-53)

It is undisputed that Respondent pulled the trigger on the Taser in prong mode a total of four times and that the weapon recorded four cycles lasting for five seconds each. (CCRB Ex. 3) The parties agree that the first two cycles were reasonable based upon Complainant’s continued active resistance to being taken into custody. CCRB has charged Respondent with wrongfully using force against Complainant for the third and fourth cycle. At issue is whether CCRB has proven by a preponderance of the credible evidence that Respondent’s actions amounted to a wrongful use of force. I find that they have not.

³ Patrol Guide 221-08 requires officers to “break CEW cartridge wire by hand approximately four to six inches from probe...Any probe that has penetrated the skin of any person will only be removed by medical personnel.”

Patrol Guide Section 221-01 sets forth that officers may use force “when it is reasonable to place a person in custody or to prevent escape from custody.” With regard to the use of Tasers, Patrol Guide 221-08 instructs that officers, “should use a CEW for one standard cycle (five seconds) while constantly assessing the situation to determine if subsequent cycles are necessary. Members should consider that exposure to the CEW for longer than fifteen seconds (whether due to multiple applications or continuous cycling) may increase the risk of death or serious injury. All applications must be independently justifiable, and the risks should be weighed against other force options.”

In this case, Complainant was being arrested as a suspect in connection to a serious violent crime—armed carjacking.⁴ Contrary to CCRB’s assertion, Complainant continued to actively resist after the first two Taser cycles. In fact, Complainant himself candidly admitted in his hearsay statement that he was actively trying to get away from the officers by repeatedly pulling his arms out of their grip. This is confirmed by body-worn camera footage that captured Complainant’s resistance, even after the deployment of the second prong mode cycle. The result was that it became difficult to handcuff Complainant, increasing the danger for all involved. Indeed, it is only when he is finally in handcuffs that the officers have control over Complainant and he stops pulling away. It is also at this point that Respondent stops deploying the Taser. Before that point, Complainant’s continued resistance, amidst two dogs that were jumping on and barking at the officers, justified the force used by Respondent.

It is also important to note that although he did not appear before the tribunal, Complainant told CCRB investigators that he was tased “once or twice:” the first “on my back” and then again in his chest. This assessment is consistent with Respondent’s testimony that the

⁴ Respondent and the other officers subsequently learned that Complainant was not one of the perpetrators of the crime.

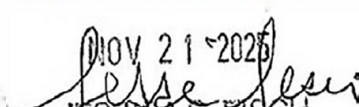
Taser was only functional for the first two deployments. Respondent spoke knowledgeably about the Department's training and policies regarding Taser use. Respondent testified credibly that at the beginning of the second prong mode cycle, the noise coming from the Taser changed, indicating that it was not working properly. He explained that the Taser can sometimes reset itself after a malfunction, and because he observed Complainant continuing to actively resist being handcuffed, he attempted a third and a fourth prong cycle. Respondents heard the same sound each time, indicating to him that those deployments were not successful.

I carefully reviewed the body-worn camera footage of the incident, including the slower-speed clip entered into evidence by CCRB. The recording confirms that the sound coming from the Taser during the second prong mode cycle changes from steady and fast-paced to slower, more sporadic clicking, indicating that during the confusion, the wire came loose from the prong. The noise continued in that interrupted manner during the third and fourth cycles. The fact that the Complainant recalled only two Taser activations supports Respondent's malfunction theory.

Accordingly, the record failed to be proved by a preponderance of the credible evidence that Respondent wrongfully used force against Complainant. For the foregoing reasons, I find Respondent Not Guilty.

Respectfully submitted,


Anne E. Stone
Assistant Deputy Commissioner Trials

APPROVED
NOV 21 2025

JESSICA S. TISCH
POLICE COMMISSIONER